

**CV-25-009803 DOLZADELLI, CHELSEA vs SALAS, OSCAR – a)
Defendant's Motion to Compel Form Interrogatories – MOOT; b)
Defendant's Motion to Deem Admissions – MOOT.**

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) MOOT. The Court exercises its discretion to consider Plaintiff's late filed Opposition hereto. Jack v. Ring LLC, (2023); 91 Cal. App. 5th 1186; Bozzi v. Nordstrom, Inc., (2010)186 Cal. App. 4th 755. Defendant is entitled to Code compliant verified responses to its Form Interrogatories, Set Two served on Plaintiff on July 17, 2026. Code Civ. Proc., § 2030.260 However, in light of Plaintiff's verified responses and amended verified responses served on Defendant ahead of this hearing, and Plaintiff's Counsel's attestations to the calendaring mistake that led to said untimely responses, Plaintiff is relieved from the waiver of objections caused by said untimely responses. However, monetary sanctions are imposed against Plaintiff and her Counsel of record in the sum of \$375 for Defendant's Counsel's reasonable fees and costs incurred in filing and prosecuting this motion. Plaintiff's request for monetary sanctions is denied. b) MOOT. The Court exercises its discretion to consider Plaintiff's late filed Opposition hereto. (Jack v. Ring LLC, (2023); 91 Cal. App. 5th 1186; Bozzi v. Nordstrom, Inc., (2010)186 Cal. App. 4th 755). In view of Plaintiff's Counsel's declaration as to the service of Plaintiff's Responses and Amended Responses to said Request for Admissions, Set One, prior to the hearing on this motion, which the Court deems substantially compliant, the Court finds this motion, moot. Code of Civ. Proc., § 2033.280 (b) and (c) However, monetary sanctions of \$525 are imposed against Plaintiff' and her Counsel for Defendant's Counsel's reasonable attorney fees and costs incurred in filing this motion Code of Civ. Proc., § 2033.280. Plaintiff's request for monetary sanctions is denied.

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However, in light of Plaintiff's verified responses and amended verified responses served on Defendant ahead of this hearing, and Plaintiff's Counsel's attestations to the calendaring mistake that led to said untimely responses, Plaintiff is relieved from the waiver of objections caused by said untimely responses.

However, monetary sanctions are imposed against Plaintiff and her Counsel of record in the sum of \$375 for Defendant's Counsel's reasonable fees and costs incurred in filing and prosecuting this motion.

Plaintiff's request for monetary sanctions is denied.

b) MOOT.

The Court exercises its discretion to consider Plaintiff's late filed Opposition hereto. (Jack v. Ring LLC, (2023); 91 Cal. App. 5th 1186; Bozzi v. Nordstrom, Inc., (2010)186 Cal. App. 4th 755).

In view of Plaintiff's Counsel's declaration as to the service of Plaintiff's Responses and Amended Responses to said Request for Admissions, Set One, prior to the hearing on this motion, which the Court deems substantially compliant, the Court finds this motion, moot. Code of Civ. Proc., § 2033.280 (b) and (c)

However, monetary sanctions of \$525 are imposed against Plaintiff' and her Counsel for Defendant's Counsel's reasonable attorney fees and costs incurred in filing this motion Code of Civ. Proc., § 2033.280.

Plaintiff's request for monetary sanctions is denied.